

place him in the position of a mere stranger, and that he was under no obligation to disclose to the Court any facts within his knowledge affecting the value of the property (e). But if the intending purchaser lays any information before the Court for the purpose of obtaining its approval of the sale, he is bound to disclose all the material facts within his knowledge; and L. J. Baggallay, in delivering the judgment of the Court of Appeal in *Boswell v. Coaks*, observed: — “The Court is neither buyer nor seller, and it is the duty of everyone laying materials before it for the purpose of obtaining its approval of any transaction to take care that the materials furnished to guide the Court shall not be incomplete or misleading. If the approval of the Court has been obtained by misrepresentation, or by the withholding of material information, through the absence of which the information furnished is misleading, the Court will treat such misrepresentation or withholding as fraud, and will act accordingly ”(f).]

14. **Where cestuis que trust are infants.** — If the *cestuis que trust* be under disability, as infants, the trustee, as he cannot be released from the liabilities of his situation, * cannot by any act *in pais* become the purchaser of [*490] the estate (a); but, if it be absolutely necessary that the property should be sold, and the trustee is ready to give more than any one else, he may institute proceedings in equity, and apply by motion, [or summons] to be allowed to purchase, and the Court will then examine into the circumstances, ask who had the conduct of the transaction, whether there is reason to suppose the premises could be sold better, and upon the result of that inquiry will let another person prepare the particular of sale, and allow the trustee to bid (b); and, generally, if the Court can see clearly that under the circumstances of the case it would be for the benefit of the *cestuis que trust* that the trustee should purchase (as at a certain sum beyond what could be obtained

[(e) *Boswell v. Coaks*, 23 Ch. D. 302; reversed on other grounds, 27 Ch. D. 424.]

[(f) 27 Ch. D. 454.]

(a) *Campbell v. Walker*, 5 Ves. 678; S. C. 13 Ves. 601.

(b) *Campbell v. Walker*, 5 Ves. 681, 682, *per Lord Alvanley*.